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File No.: EXP202402785

RESOLUTION OF TERMINATION OF THE PROCEDURE FOR RECOGNITION OF RESPONSIBILITY AND VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On March 11, 2025, the Presidency of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA, CREDIFIMO, E.F.C., SAU (hereinafter, CREDIFIMO), through the agreement transcribed below:

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File No.: EXP202402785

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions carried out by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST:

A.A.A. (hereinafter, the claimant), on January 22, 2024, filed a complaint with the Spanish Agency for Data Protection for a possible infringement attributable to UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA EFC with NIF A28371292 (hereinafter, CREDIFIMO).

The facts brought to the attention of this authority:

The claimant requested, on September 18, 2023, access to the data registered in their name in the ASNEF solvency and credit file.

On September 22, 2023, ASNEF sent a letter to their address informing them of the inclusion of their personal data in the file, effective from January 10, 2023, due to their status as a guarantor of a mortgage loan subscribed by third parties with the respondent, due to an alleged non-payment of the installments of this loan.

Once the claimant received the communication from ASNEF regarding this inclusion, they contacted the loan holders, who confirmed that they were up to date with payments through proof of payments made and with a copy of the judgment dated May 17, 2023, from the Court of First Instance No. X of ***LOCALIDAD.1, which upheld the claim filed by the borrowers against the respondent and dismissed the counterclaim filed by CREDIFIMO demanding payment of the allegedly unpaid installments.

In light of this information, the claimant formally requested CREDIFIMO in writing to remove them from the file, as they not only do not acknowledge the debt but have also not been requested at any time to pay any amount, without their claim being addressed.

Along with their complaint, they provided, among other documents:

- A copy of the ASNEF report dated September 22, 2023, which includes their personal data registered at the request of the respondent, since January 10, 2023.
- A copy of the aforementioned judgment from the Court of First Instance No. X of ***LOCALIDAD.1, which, in addition to dismissing the counterclaim filed by the respondent, declares the floor clause contained in the mortgage loan deed null, orders the respondent to eliminate the general contracting condition, to refund the amounts overpaid in interest due to the application of such clause, orders recalculation of the mortgage loan amortization schedule excluding the floor clause, declares the opening fee of the mortgage loan null and abusive, and orders the payment of the costs incurred.

SECOND:

In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to CREDIFIMO for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The forwarding action and request for information were sent electronically, in accordance with the provisions of Article 43 of Law 39/2015, of October 1, on the Common Administrative Procedure of

Public Administrations (hereinafter, LPACAP), resulting in notification on February 20, 2024, as evidenced in the file.

The respondent replied to the forwarding action and request for information on March 19, 2024, stating the following:

- The respondent claims not to have received a request for the right to erasure from the claimant.

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- It would not have been possible to proceed with the deletion of your data, as there are active contracts with CREDIFIMO that are not canceled.

- Upon consulting the data, the claiming party does not appear in the solvency files since 2024.

- It is claimed that the loan subject to the complaint has not been paid since September 2009, and a repayment schedule is attached showing the issue date of the installments and the payment date.

On April 3, 2024, a request for additional documentation was sent to CREDIFIMO: "A response has been received to the transfer procedure, but the response regarding the right to deletion is incomplete. Therefore, a copy of the response to the claiming party is requested, addressing or denying the requested right with justification."

On April 9, 2024, the Agency received the response to this request for additional documentation, which consists of a copy of the response letter to the claiming party dated April 8, 2024, without acknowledgment of receipt, regarding the exercise of the right to deletion, in which:

- It informs that there are registered contracts or commercial relationships in their name as a guarantor.

- It is not possible to proceed with the deletion of the data included in their systems without canceling the contracts or commercial relationships.

On April 10, 2024, a request for additional information was sent to the responding party, notified on April 15, 2024, via electronic means with the following wording: "Proof of the prior payment requests sent to the claiming party, as a guarantor, is requested, informing of the possible inclusion of their data in the solvency files, since the complaint was made for not having received such notices."

The responding party replied to the request for additional information on April 22, 2024, without providing the prior payment request before the inclusion in ASNEF dated 01/10/2023, in which it asserts the following:

- The loan subject to the complaint has remained unpaid since September 2009, and it was at that time that the payment demand letters were sent, containing the notice of their inclusion in ASNEF, from which point their data was recorded in the aforementioned solvency register.

- CREDIFIMO, which has outsourced the communications, has made every effort to obtain a copy of the communication, but, up to the time of responding to this, has not obtained it from those services, in addition to the impossibility of gathering such information from a computer system that ceased to be used in 2017.

- Due to a series of computer errors, they were removed from the ASNEF file, and once a new default occurred and the debt increased to more than 90 days, the system re-registered them in January 2023, notifying ASNEF. Therefore, in the letter sent by ASNEF to the client, the registration date appears as January 2023, instead of the date in 2009 when they were first included in the solvency register.

- A copy of a letter sent to the claiming party in May 2018 is attached, informing that the debt collection process is being initiated through judicial means.

THIRD:

On April 22, 2024, in accordance with Article 65 of the LOPDGDD, the complaint filed by the claiming party was admitted for processing.

FOURTH:

According to the report collected from the AXESOR tool, the entity CREDIFIMO is a company established in 1971, with a business volume of 22,234,000 euros in 2023.

LEGAL GROUNDS

I Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

II Procedure

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued in its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

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In accordance with Article 64 of the LOPDGDD, and taking into account the characteristics of the alleged infringement committed, a sanctioning procedure is initiated.

The procedure will have a maximum duration of twelve months from the date of the initiation agreement. Once this period has elapsed, it will expire, and consequently, the file of actions will be archived, in accordance with the provisions of Article 64 of the LOPDGDD.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of the LPACAP.

III Preliminary Issues

Article 4.1) of the GDPR defines "personal data" as: "any information relating to an identified or identifiable natural person ('the data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier, such as a name, an identification number, location data, an online identifier, or one or more factors specific to the physical, physiological, genetic, mental, economic, cultural, or social identity of that natural person."

Article 4.2) of the GDPR defines "processing" as: "any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or otherwise making available, alignment, combination, restriction, erasure or destruction."

Article 4.7) of the GDPR defines the "data controller" or "controller" as: "the natural or legal person, public authority, agency or other body which, alone or jointly with others, determines the purposes and means of the processing; where the purposes and means of that processing are determined by Union or Member State law, the controller or the specific criteria for its designation may be provided for by Union or Member State law." Furthermore, Article 4.8) of the GDPR defines the "processor" as the natural or legal person, public authority, agency or other body that processes personal data on behalf of the controller.

In the present case, in accordance with the provisions of Articles 4.1 and 4.2 of the GDPR, there is evidence of the processing of personal data, since CREDIFIMO carries out, among other processing activities, the collection and storage of personal data of natural persons such as name and surname and postal address.

CREDIFIMO carries out this activity in its capacity as the data controller, as it is the entity that determines the purposes and means of such activity, pursuant to Article 4.7 of the GDPR:

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IV Breach of Obligation. Legality of Processing

The first paragraph of Article 6 of the GDPR states the following:

"1. Processing shall be lawful only if at least one of the following conditions is met:

- a) the data subject has given consent to the processing of their personal data for one or more specific purposes;
- b) processing is necessary for the performance of a contract to which the data subject is a party or for the implementation at the request of the data subject of pre-contractual measures;
- c) processing is necessary for compliance with a legal obligation to which the controller is subject;
- d) processing is necessary to protect the vital interests of the data subject or of another natural person;
- e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, provided that such interests are not overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular when the data subject is a child.

The provision in point f) of the first paragraph shall not apply to processing carried out by public authorities in the exercise of their functions."

In parallel, the LOPDGDD, in its Article 20, under the heading "Credit Information Systems," states:

"1. Unless proven otherwise, the processing of personal data relating to the breach of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate. The entity maintaining the credit information system with data relating to the breach of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data remaining blocked during that period.
- d) That the data is only maintained in the system while the breach persists, with a maximum limit of five years from the due date of the monetary, financial, or credit obligation.

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- e) That the data related to a specific debtor may only be consulted when the person consulting the system has a contractual relationship with the affected party that involves the payment of a monetary amount or has requested the conclusion of a contract that implies financing, deferred payment, or periodic billing, as occurs, among other cases, in those provided for in the legislation on consumer credit contracts and real estate credit contracts. When the right to limit the processing of data has been exercised before the system by contesting its accuracy in accordance with the provisions of Article 18.1.a) of Regulation (EU) 2016/679, the system will inform those who may consult it in accordance with the previous paragraph about the mere existence of such circumstance, without providing the specific data regarding which the right has been exercised, while the request of the affected party is being resolved.
- f) That, in the event that the request for the conclusion of the contract is denied, or it does not come to fruition as a result of the consultation carried out, the person who consulted the system shall inform the affected party of the result of that consultation.

2. The entities that maintain the system and the creditors, regarding the processing of data related to

their debtors, shall be considered joint controllers of the data processing, applying the provisions established by Article 26 of Regulation (EU) 2016/679. It shall be the responsibility of the creditor to ensure that the requirements for the inclusion of the debt in the system are met, being liable for its non-existence or inaccuracy.

3. The presumption referred to in paragraph 1 of this article does not cover cases where the credit information is associated by the entity maintaining the system with additional information not contemplated in that paragraph, related to the debtor and obtained from other sources, in order to profile the debtor, particularly through the application of credit scoring techniques.

According to the respondent, the loan in question has remained unpaid since September 2009, and at that time, payment demand letters were sent, containing notice of its inclusion in ASNEF, from which point their data was recorded in the aforementioned solvency register. However, it does not substantiate this claim, alleging that it is impossible to provide the documentation.

It adds that due to a series of computer errors, the claimant was removed from the ASNEF file, and once a new default occurred and the debt increased to more than 90 days, the system re-registered them in January 2023.

However, in light of the judgment of the Court of First Instance No. X, of ***LOCALITY.1, dated May 17, 2023, which the claimant provides in their claim, the borrowers present in the ordinary trial the payment receipts for the mortgage installments.

Therefore, in the present case, CREDIFIMO, in its response to the information request made by this Agency, does not substantiate having informed the claimant in the contract or at the time of requesting payment about the possibility of

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its inclusion in a credit information system, as established in article 20.1 c) of the previously transcribed LOPDGDD.

The creditor must demand payment from the debtor and inform them in the contract or at the time of demanding payment about the possibility of including their data in such systems, indicating which ones they participate in. Consequently, it is not sufficient to merely demonstrate the non-payment of a certain, due, and enforceable debt; the creditor must also justify having demanded payment from the debtor and having fulfilled this formal obligation of information prior to the inclusion of the debtor's personal data in the system. The creditor must prove compliance with this duty, so that when the affected party denies having been demanded payment or informed prior to the inclusion of their data in the system regarding the possibility of this inclusion, the creditor must demonstrate that they have met these requirements.

The fact that CREDIFIMO communicated the data of the claimant for inclusion in the ASNEF credit information system evidences a processing of the personal data of the claimant, with none of the bases for legitimacy provided in article 6 of the GDPR being evidenced, as the defendant merely states that they informed in the payment demand letters, but without providing the aforementioned communications.

In this context, the failure to comply with the requirements set forth in article 20 LOPDGDD prevents the application of the presumption of legitimate interest that it provides, so it will be the defendant who must prove that in this case the processing is legitimized.

Therefore, in accordance with the evidence available at this moment in the agreement to initiate sanctioning proceedings, it is considered that the known facts could constitute an infringement attributable to CREDIFIMO, for violation of article 6 of the GDPR.

V Qualification of the infringement of article 6.1 of the GDPR and qualification for the purposes of prescription

Article 83.5 of the GDPR classifies as an administrative infringement the violation of the following article, which will be sanctioned, according to paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to a maximum of 4% of the total

annual global turnover of the previous financial year, opting for the higher amount:

"a) the basic principles for processing, including the conditions for consent under articles 5, 6, 7, and 9;"

For its part, the LOPDGDD in its article 71, Infringements, states that:

"Acts and behaviors referred to in paragraphs 4, 5, and 6 of article 83 of Regulation (EU) 2016/679, as well as those contrary to this organic law, constitute infringements."

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For the sole purpose of the prescription period, article 72.1 of the LOPDGDD establishes the following:

"Based on what is established in article 83.5 of Regulation (EU) 2016/679, the following are considered very serious and will prescribe after three years: infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following:

b) The processing of personal data without any of the conditions for lawful processing established in article 6 of Regulation (EU) 2016/679."

VI Proposal for sanction

In order to determine the administrative fine to be imposed, the provisions of articles 83.1 and 83.2 of the GDPR must be observed, which state:

"1. Each supervisory authority shall ensure that the imposition of administrative fines under this article for the infringements of this Regulation indicated in paragraphs 4, 9, and 6 are, in each individual case, effective, proportionate, and dissuasive.

2. Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure to those contemplated in article 58, paragraph 2, letters a) to h) and j). In deciding on the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected parties and the level of damage suffered;

b) the intentionality or negligence in the infringement;

c) any measures taken by the controller or processor to mitigate the damage suffered by the affected parties;

d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have applied in accordance with articles 25 and 32;

e) any previous infringement committed by the controller or processor;

f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;

g) the categories of personal data affected by the infringement;

h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or processor notified the infringement and, if so, to what extent;

i) when the measures indicated in article 58, paragraph 2, have been previously ordered against the controller or processor in relation to the same matter, compliance with those measures;

j) adherence to codes of conduct under article 40 or to certification mechanisms approved under article 42, and

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k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement."

For its part, Article 76 “Sanctions and corrective measures” of the LOPDGDD states:

“1. The sanctions provided for in paragraphs 4, 5, and 6 of Article 83 of Regulation (EU) 2016/679 shall be applied taking into account the criteria for graduation established in paragraph 2 of the aforementioned article.

2. In accordance with the provisions of Article 83.2.k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The ongoing nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In the present case, considering the seriousness of the possible infringement, particularly regarding the consequences that its commission causes to the party being claimed against, the imposition of a fine would be appropriate, in addition to the adoption of measures, if applicable.

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. To ensure these principles, the business volume of CREDIFIMO (22,234,000 euros in the year 2023) is considered as a preliminary factor.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered appropriate to graduate the sanction to be imposed according to the following circumstances, contemplated in the aforementioned provisions. As a preliminary matter, the following circumstances are deemed to be present:

- The nature and severity of the infringement; the facts revealed affect a basic principle related to the processing of personal data, such as legitimacy, which the regulation penalizes with the utmost severity; the level of harm suffered by the claimant affects their economic solvency as they have been included in common credit information systems at the request of the party being claimed regarding a debt that has not been proven to have been demanded from the claimant, art. 83.2.a of the GDPR.
- The intentionality or negligence in the infringement, as the party being claimed included the data in files of defaulters without the debt meeting the requirements of Article 20 of the LOPDGDD. Also connected with the degree of diligence that the data controller is obliged to exercise in complying with the obligations imposed by data protection regulations, the SAN of 17/10/2007 can be cited. Although it was issued before the entry into force of the GDPR, its pronouncement is perfectly extrapolable to the case we are analyzing. The ruling, after referring to the fact that entities whose activities involve continuous processing of customer and third-party data must observe an appropriate level of diligence, specified that “(...). The Supreme Court has understood that there is negligence whenever a legal duty of care is disregarded, that is, when the infringer does not behave with the required diligence. And in assessing the degree of diligence, the professionalism or lack thereof of the subject must be especially weighed, and there is no doubt that, in the case now examined, when the activity of the appellant involves constant and abundant handling of personal data, it must be insisted on rigor and exquisite care to comply with the legal provisions in this regard” (Article 83.2.b of the GDPR).

Furthermore, the following aggravating factors are considered:

- The connection of the infringer's activity with the processing of personal data; the party being claimed habitually and continuously processes personal data of a large number of interested parties. The performance of financial activities, which is its main activity, necessarily involves operations of personal data processing. Thus, the alleged infringement occurs within the framework of personal data processing that CREDIFIMO routinely conducts in its business and related to it.

For the purpose of deciding on the imposition of an administrative fine and its amount, in accordance

with the evidence available at this moment of the initiation of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the balance of the circumstances contemplated in Article 83.2 of the GDPR and 76.2 of the LOPDGDD, regarding the infringement committed by violating the provisions of Article 6.1 of the GDPR, allows for an initial administrative fine of 200,000.00 euros to be set.

VII Corrective Measures

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If the infringement is confirmed, the resolution issued may establish the corrective measures that the infringing entity must adopt to put an end to the non-compliance with personal data protection legislation, in this case Article 6.1 of the GDPR, in accordance with the provisions of the aforementioned Article 58.2.d) of the GDPR, according to which each supervisory authority may "order the controller or processor to bring processing operations into compliance with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame..."

Thus, the responsible entity may be required to adjust its actions to comply with personal data protection regulations, to the extent expressed in the previous Legal Grounds.

In this act, the alleged infringement committed and the facts that could lead to this possible violation of data protection regulations are established, from which it is clearly inferred what measures are to be adopted, without prejudice to the fact that the type of procedures, mechanisms, or specific instruments for implementing them corresponds to the sanctioned party, as it is the data controller who fully knows their organization and must decide, based on proactive responsibility and a risk-based approach, how to comply with the GDPR and the LOPDGDD.

However, in this case, regardless of the above, in accordance with the evidence available at this moment in the initiation of the sanctioning procedure, the resolution adopted may require CREDIFIMO to adopt the following measures within one month from the date of the enforceability of the resolution concluding this procedure:

- Certify the deletion in the ASNEF credit information system of the data of the complaining party, as CREDIFIMO does not have a basis that legitimizes such processing operation.

The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83.2 of the GDPR.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the resolution of the present sanctioning procedure may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Articles 83.5 and 83.6, and such conduct may lead to the initiation of a further administrative sanctioning procedure.

Furthermore, it is reminded that neither the acknowledgment of the infringement committed nor, where applicable, the voluntary payment of the proposed amounts, exempts the obligation to adopt the necessary measures to cease the conduct or correct the effects of the infringement committed and to certify compliance with this obligation before this AEPD.

Therefore, in light of the above, by the Presidency of the Spanish Agency for Data Protection,

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IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA EFC, with NIF A28371292, for the alleged infringement of Article 6.1 of the GDPR, classified under Article 83.5 of the GDPR.

SECOND: TO APPOINT B.B.B. as the instructor and C.C.C. as the secretary, indicating that they may be challenged, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of

October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate for Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

FOURTH: THAT for the purposes provided in Article 64.2 b) of the LPACAP, the sanction that may correspond would be an administrative fine of 200,000.00 euros, without prejudice to what results from the instruction.

FIFTH: TO NOTIFY this agreement to UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA EFC, with NIF A28371292, granting a hearing period of ten working days for it to submit allegations and present any evidence it deems appropriate. In its written allegations, it must provide its NIF and the procedure number indicated in the heading of this document.

In accordance with the provisions of Article 85 of the LPACAP, it may acknowledge its responsibility within the period granted for the formulation of allegations to this initiation agreement; this will entail a reduction of 20% of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at 160,000.00 euros, resolving the procedure with the imposition of this sanction.

Likewise, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of its amount. With the application of this reduction, the sanction would be set at 160,000.00 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions were to apply, the amount of the sanction would be set at 120,000.00 euros.

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In any case, the effectiveness of either of the two reductions mentioned will be conditioned upon the express withdrawal or renunciation of any administrative action or appeal against the sanction.

For these purposes, in the event of opting for either of them, a formal communication of the withdrawal or renunciation of any administrative action or appeal against the sanction must be sent to the General Sub-Directorate of Data Inspection, indicating which of the two reductions is being accepted or if both are being accepted.

In the event that the voluntary payment of either of the amounts indicated above (160,000.00 euros or 120,000.00 euros) is chosen, it must be made by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount being accepted.

Additionally, the proof of payment must be sent to the General Sub-Directorate of Inspection along with the formal communication of the withdrawal or renunciation of any administrative action or appeal against the sanction in order to continue with the procedure in accordance with the amount deposited.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Unique Enabled Electronic Address (dehu.redsara.es) and the Electronic Headquarters (sedeagpd.gob.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and continuing with the process. You are informed that you can identify an email address to this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the

notification from being considered fully valid.

Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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SECOND: On March 31, 2025, CREDIFIMO proceeded to pay the sanction in the amount of 120,000.00 euros making use of the two reductions provided for in the previously transcribed initiation agreement, which implies the acknowledgment of responsibility in relation to the facts referred to in the initiation agreement and its legal qualification.

THIRD: The initiation agreement transcribed above indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may "order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...".

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the initiation agreement is appropriate.

LEGAL GROUNDS

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Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in sanctioning procedures" provides the following:

"1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.

2. When the sanction is solely of a pecuniary nature or when a pecuniary sanction and another non-pecuniary sanction can be imposed but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for the damages caused by the commission of the infringement.

3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any administrative action or appeal against the sanction.

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The percentage of reduction provided for in this section may be increased by regulation."

III

Voluntary Payment and Acknowledgment of Responsibility

In accordance with the provisions of the aforementioned Article 85 of the LPACAP, the notification of the initiation agreement informed about the possibility of acknowledging responsibility and making a voluntary payment of the proposed sanction, which would entail two cumulative reductions of 20% each. With the application of these two reductions, the sanction would be set at 120,000.00 euros, and its payment would imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

Following the notification of the aforementioned initiation agreement, CREDIFIMO has proceeded to acknowledge responsibility and make a voluntary payment of the sanction, availing itself of the two reductions provided for. In accordance with section 3 of Article 85 LPACAP, the effectiveness of the aforementioned reductions will be conditioned upon the withdrawal or renunciation of any administrative action or appeal against the sanction.

It should be noted that, according to the provisions of the LPACAP, as well as the jurisprudence of the Supreme Court in this matter, the exercise of voluntary payment by the alleged responsible party does not exempt the administration from the obligation to resolve and notify all procedures, regardless of their form of initiation. Similarly, Article 88 of the aforementioned regulation establishes that the resolution that concludes the procedure will decide all issues raised by the interested parties and any other matters arising from it.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the graduation of sanctions, the Presidency of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DECLARE the commission of the infringements and TO CONFIRM the sanctions determined in the dispositive part of the initiation agreement transcribed in this resolution.

The sum of the aforementioned amounts results in a total amount of 200,000.00 euros.

After having proceeded with the prompt payment and acknowledgment of responsibility by UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA, CREDIFIMO, E.F.C., SAU, it is hereby resolved, pursuant to Article 85 of the LPACAP, to reduce the total mentioned by 40%, which results in the final amount of 120,000.00 euros.

The effectiveness of the aforementioned reductions is, in any case, conditioned upon the withdrawal or renunciation of any administrative action or appeal.

SECOND: TO DECLARE the termination of procedure EXP202402785, in accordance with the provisions of Article 85 of the LPACAP.

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THIRD: TO ORDER UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA, CREDIFIMO, E.F.C., SAU to notify the Agency within 1 month from the date this resolution becomes final and enforceable, of the adoption of the measures described in the legal grounds of the initiation agreement transcribed in this resolution.

FOURTH: TO NOTIFY this resolution to UNIÓN DE CRÉDITO PARA LA FINANCIACIÓN MOBILIARIA E INMOBILIARIA, CREDIFIMO, E.F.C., SAU.

FIFTH: In accordance with the provisions of Article 85 of the LPACAP, which conditions the reduction for voluntary payment and acknowledgment of responsibility upon the withdrawal or renunciation of any administrative action or appeal, this resolution will be final in the administrative process and fully enforceable from the date of its notification.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative

Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

However, in accordance with the provisions of Article 90.3.a) of the LPACAP, the final resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal. If this is the case, the interested party must formally communicate this fact by means of a written document addressed to the Spanish Agency for Data Protection, submitting it through the Agency's Electronic Registry [<https://sedeaepd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation that proves the effective filing of the contentious-administrative appeal. If the Agency is not aware of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension to be concluded.

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Lorenzo Cotino Hueso

President of the Spanish Agency for Data Protection

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